SELECTMEN'S MEETING - TUESDAY, SEPTEMBER 1, 2026

4:00 PM- SELECTMEN'S SPECIAL MEETING

1. Wells Emergency Medical Services

Brian Toomey, Chairman of the WEMS Board of Directors and Attorney Rob Hayes discussed the terms of the settlement. From 2010-2020, non-emergency intra-facility transfers were coded as emergencies. An estimated 1000 trips were wrongly coded. A non-emergency trip is reimbursed at $237 plus mileage, while an emergency trip is reimbursed at $380-$425. WEMS has settled with the government and whistleblower for $340,000. WEMS is ceasing operations and the Town is creating the Wells Rescue Department.

4:30 PM – EXECUTIVE SESSION – To hold an executive session, pursuant to 1 M.R.S. section 405(6)(A), to consult with the Town Attorney concerning the board's legal rights and duties relating to the establishment of Wells Emergency Medical Services as a Town Department.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to enter into executive session, pursuant to 1 M.R.S. section 405(6)(A), to consult with the Town Attorney concerning the board's legal rights and duties relating to the establishment of Wells Emergency Medical Services as a Town Department. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to come out of executive session. Passed unanimously.

Immediately followed by:

EXECUTIVE SESSION – To hold an executive session, pursuant to 1 M.R.S. section 405(6)(E), to consult with the Town Attorney concerning the board's legal rights and duties regarding the establishment of a Short Term Rental ordinance.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to enter into executive session, pursuant to 1 M.R.S. section 405(6)(E), to consult with the Town Attorney concerning the board's legal rights and duties regarding the establishment of a Short Term Rental ordinance. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to come out of executive session. Passed unanimously.

Immediately followed by:

EXECUTIVE SESSION – To hold an executive session, pursuant to 1 M.R.S. section 405(6)(E), to consult with the Town Attorney concerning the board's legal rights and duties related to the Perkins Pasture Subdivision Drainage Easement.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to enter into executive session, pursuant to 1 M.R.S. section 405(6)(E), to consult with the Town Attorney concerning the board's legal rights and duties related to the Perkins Pasture Subdivision Drainage Easement. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to come out of executive session. Passed unanimously.

5:30 PM – INTERVIEWS FOR VARIOUS BOARD AND COMMITTEES

- Gerard Beach - Budget Review Committee, Alternate
- Sean McFadden - Board of Assessment Review
- Phillip Breton - Harbor Advisory Committee Term Renewal. Tabled.
- Eric Sprague - Harbor Advisory Committee Term Renewal
- Craig Merrow - Energy Advisory Committee Term Renewal

6:00 PM – SELECTMEN'S MEETING

Pledge of Allegiance

MUNICIPAL OFFICERS WORKSHOP / BUSINESS / PUBLIC HEARINGS

Determination of Quorum for Selectmen. Present: Tim Roche, Kathy Chase, Jim Smith, John MacLeod, Avery Seuter. Staff present: Mike Pardue, Adam Shaw, Rebekah Kelley, Cinndi Davidson

Determination of Quorum for Planning Board. Present: Chuck Millian, Brian Toomey, Steve Koeninger, Paul Baratta, Josh Lagasse, Josh Carruthers, Dave MacKenzie

1. Joint public hearing with the Planning Board on Establishing a Retroactive Moratorium on Data Centers.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to open the public hearing. Passed unanimously.
Motion by Mr. Toomey, seconded by Mr. Koeninger, to open the public hearing. Passed unanimously.

There was one speaker in favor of a retroactive moratorium.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing. Passed unanimously.
Motion by Mr. Toomey, seconded by Mr. Koeninger, to close the public hearing. Passed unanimously.

The Planning Board felt that the definition of a "data center" should be more clearly defined. Ms. Rachin said there had been a discussion about square footage vs, kilowatts in the definition. The average data center is 100,000 sq. ft.

Motion by Mr. Toomey, seconded by Mr. Lagasse, to amend the definition to specify 100,000 sq. ft. Passed unanimously.

Motion by Mr. Smith, seconded by Mr. MacLeod to amend the definition to specify 100,000 sq. ft. Passed unanimously.

Motion by Mr. Toomey, seconded by Mr. Koeninger, to recommend the moratorium as amended. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to recommend the moratorium as amended. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to move the proposed retroactive moratorium on data centers to the Certification and Warrant Signing phase to be voted on by secret ballot on November 3, 2026. Passed unanimously.

2. Joint public hearing with the Planning Board on "An Ordinance to Amend Chapter 145 (Land Use) of the Code of the Town of Wells to Enact Provisions Relating to Short Term Rentals and Use Permits".

Motion by Mrs. Chase, seconded by Mr. MacLeod, to open the public hearing. Passed unanimously.

Motion by Mr. Toomey, seconded by Mr. Koeninger, to open the public hearing. Passed unanimously.

There were several speakers regarding the proposed ordinance.
An overlay zone is difficult to enforce.
Many homes at the beach do not have enough parking for the number of guests.
Friends and family using a house aren't the same as paying customers.
If a property is sold, can the new owner continue the use as a short term rental? Property owners' rights conflict with the neighbors' rights.
The beach neighborhood should remain residential, not commercial.
Some home owners depend on the income from summer rentals.
Overlay should be allowed in the RA Zone.
Residents don't feel safe with strangers in the area.
Property owners should have to provide proof of renters' insurance.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing. Passed unanimously.

Motion by Mr. Toomey, seconded by Mr. Koeninger, to close the public hearing. Passed unanimously.

Mr. Smith noted that the Board doesn't reply to comments made during the public hearing. Mrs. Chase said that discussions among the Board members take place during public meetings. The tragic motel fire in Kittery stressed the need for more safety regulations.
Mr. Koeninger said that the Planning Office and Planning Board are not ready to advance the question.
Mr. Lagasse said there should be a distinction between primary and secondary homeowners. Mr. McKenzie said that commercial rentals should be treated differently from homeowners who rent their properties. Mr. Toomey said the question should be tabled until the June ballot.

Motion by Mr. Toomey, seconded by Mr. Koeninger, to table the proposed ordinance amendment. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to table the proposed ordinance amendment. Passed unanimously.

This concluded the Planning Board's portion of the meeting.

3. Public hearing to consider a ballot question for the November 3, 2026 Special Town Meeting for the release and possible relocation of a Drainage Easement for the Perkins Pasture Subdivision (Tax Map 37, Lot 2D-17).

Motion by Mrs. Chase, seconded by Mr. MacLeod, to open the public hearing. Passed unanimously.

There was no public comment.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to move the proposed article relating to a Drainage Easement for the Perkins Pasture Subdivision to the Certification and Warrant Signing phase to be voted by secret ballot on November 3, 2026. Passed unanimously.

4. Public hearing on Mobile Home Park Rent Stabilization.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to open the public hearing. Passed unanimously.

Residents of several parks discussed concerns about rent increases, corporate ownership of parks, state legislation regarding parks, residents living on fixed incomes, and poor water quality. One park owner said he needs to be able to raise lot rentals when the operating expenses increase.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing. Passed unanimously. Attorney Rachin amended the language on pages 2 & 5 as requested. CPI-W is limited to a 1% increase and FA-8 is being deleted.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to move the proposed article relating to Mobile Home Park Rent Stabilization, as amended, to the Certification and Warrant Signing phase to be voted by secret ballot on November 3, 2026. Passed unanimously.

5. Public hearing on an Emergency Moratorium on Mobile Home Park Lot Rent Increase Restrictions.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to open the public hearing. Passed unanimously.

Several speakers supported the moratorium.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing. Passed unanimously,

Attorney Rachin said the language can be modified to protect against any possible notices from August 1, 2026 until the ordinance is voted on by the voters.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to approve the proposed Emergency Moratorium on Mobile Home Park Lot Rent Increase Restrictions, as amended. Passed unanimously.

6. Public hearing on an Emergency Ordinance to Allow for Continuity in the Provision of Emergency Medical Services in the Town of Wells.

Motion by Ms. Chase, seconded by Mr. MacLeod, to open the public hearing. Passed unanimously.

Brian Toomey, Director of the WEMS Board, discussed the history of the lawsuit and settlement agreement with the federal government.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to approve an Emergency Ordinance to Allow for Continuity in the Provision of Emergency Medical Services in the Town of Wells. Passed unanimously.

7. Public hearing on an Ordinance to Create the Town of Wells Emergency Medical Services Department.

Motion by Ms. Chase, seconded by Mr. MacLeod, to open the public hearing. Passed unanimously.

Attorney Rachin asked the Board to reopen the previous public hearing for two revisions. The date should be deleted and the name of the department should be revised.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to reopen the previous public hearing. Passed unanimously.

There were no public comments.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to approve an Emergency Ordinance to Allow for Continuity in the Provision of Emergency Medical Services now known as Wells Rescue Department in the Town of Wells. Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to move the proposed Ordinance as amended to the Certification and Warrant Signing phase to be voted by secret ballot on November 3, 2026. Passed unanimously.

8. Trayjockey Enterprises Inc., dba: Maine Diner, 2265 Post Road, Wells, application for a full-time Beer, Wine and Spirits Liquor License. (R)

No public comment.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing and grant the license. Passed unanimously.

9. Billy's Chowderhouse, Inc., dba: Billy's Chowder House, 216 Mile Road, Wells, application for a full-time Beer, Wine and Spirits Liquor License. (R)

No public comment.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing and grant the license. Passed unanimously.

10. Yum Mee II, Inc., dba: East Restaurant, 636 Post Road, Wells, application for a full-time Beer, Wine and Spirits Liquor License. (R)

No public comment.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing and grant the license. Passed unanimously.

11. DCS, Inc., Stutesy's Pub & Grille, 52 Post Road, Wells, application for a full-time Beer, Wine and Spirits Liquor License. (R)

No public comment.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing and grant the license. Passed unanimously.

12. Seaglass Village Condominium Association, dba: Seaglass Village Homeowners Association, 1 Old County Road, Wells, application for a full-time Beer, Wine and Spirits Liquor License. (R)

No public comment.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing and grant the license. Passed unanimously.

13. Seaglass Village Condominium Association, dba: Seaglass Village Homeowners Association, 1 Old County Road, Wells, application for a Special Entertainment Permit. (R)

No public comment.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing and grant the permit. Passed unanimously.

14. Tristan Valenti, dba: Valenti Scenic Tours, 10 White Oak Drive, Wells, application for a Commercial Recreation Business License. (N)

No public comment.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing and grant the license. Passed unanimously.

15. Kevin McGuire, dba: Drakes Island Hauling & Demo, 365 Drakes Island Road, Wells, application for a Solid Waste Disposal License.

No public comment.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to close the public hearing and grant the license. Passed unanimously.

16. Good News

No public comment.

17. Open to the Public

The problems with WEMS are not due to actions of the current Board members.
Town residents should be involved in hiring employees such as the Police Chief and Town Manager.
What will be the impact on houses at the beach due to drilling and construction when adjacent houses are being elevated? Will a bond be posted?
There will be an EV and Energy Show at the Library on September 13.
The intersection of Routes 1 and 109 needs overhead signage because of 3-point turns. The crosswalk at Mile Road needs more striping.

CURRENT AGENDA ITEMS

1. Review and action on Accounts Payable and Payroll Warrants.

Motion by Mrs. Chase, seconded by Mr. Seuter, to approve and sign the Warrant dated September 1, 2026 in the amount of $1,306,286.79, the Advance Check Warrant dated August 19, 2026 in the amount

of $33,766.38, the Advance Check Warrant dated August 26, 2026 in the amount of $79,916.51, the General Assistance Warrant dated September 1, 2026 in the amount of $3,163.76 and the Advance Check Warrant dated September 1, 2026 in the amount of $410,859.47. Passed 4-0-1 with Mr. MacLeod abstaining.

2. Update, discussion and action on Committees, Projects, Issues, Purchases and Personnel:

a) Introduction of Fire Chief Andrew Turcotte.

Mr. Pardue introduced Chief Turcotte. Chief Turcotte has been the fire chief in Westbrook and served with LifeFlight of Maine.

b) Discussion and action on a proposed renovation to Fire Substation #2 on 2 Cabin Lane (adjacent to Route 9).

WEMS has a one year lease with York Hospital for the current location. Moving the ambulances to Fire Station #2 would reduce their response time to the western part of town. The total cost will be $4.5 million and the voters will be asked to approve a bond. Action will be considered at the Select Board meeting on September 4.

c) Discussion and action to approve the Certification of Referendum Articles for the November 3, 2026 Special Town Meeting.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to table this item to September 4. Passed unanimously.

d) Discussion and action on bid award for the Furbish Road FLAP grant project to construct 800 feet of sidewalk on Furbish Road.

Town Engineer Mike Livingston recommends accepting the bid from Brex for $147,385 for the sidewalk portion of the project. Funding for the platform hasn't been approved yet.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to accept the bid from Brex in the amount of $ 147,385 for the Furbish Road FLAP grant project to construct 800 feet of sidewalk on Furbish Road.

~Attorney Rachin asked for a review of the moratorium on park rent increases. It should read "subject to a CPI-W plus 1% increase."

e) Discussion and action on bid award for a pickup truck for the Parks & Recreation Department.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to accept the bid from Arundel Ford in the amount of $ 40,715.00 for the pickup truck for the Parks and Recreation Department. Passed unanimously.

f) Discussion and action on bid award for Mobile Vehicle Column Lifts for the Public Works Department.

Steve Buckley recommended awarding the bid to Automotive Garage Tools based on staff safety and having parts and service available locally.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to accept the bid from Automotive Garage Tools in the amount of $115,990.00 for the Mobile Vehicle Column Lifts for the Public Works Department. Passed unanimously.

g) Discussion and action regarding Right of Way #16.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to table this item. Passed unanimously.

h) Discussion and action on the negotiation of a multi-year electricity supply contract.

The town usually locks into a multi-year supply contract. Electricity rates are increasing and Mr. Pardue would like to lock in the best rates as soon as possible.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to authorize Ms. Sanborn and Mr. Pardue to negotiate and contract a multi-year electricity bid. Passed unanimously.

i) Discussion and action on Food Waste Diversion Pilot Program.

There is a pilot program for composting services from Mr. Fox. Residents can bring food waste to barrels at the Transfer Station which will be emptied weekly. The cost to the town is $218 per month, which is within the budget.

j) Discussion and action to accept Donations and Bequests:

1. $125.00 from Linda Gilligan to the Town of Wells for the Founders Park Community Center.
2. $100.00 from Susan Weeks to the Town of Wells for the Founders Park Community Center.
3. $50.00 from Joseph and Linda Coggeshall-Searles to the Town of Wells for the Founders Park Community Center, in memory of Ramon Nolette.

4. $50.00 from Arthurlene Eaton to the Town of Wells for the Founders Park Community Center, in memory of Ramon Nolette.
5. $25.00 from Rocky and Rebecca Furman to the Town of Wells for the Founders Park Community Center, in memory of Ramon Nolette.
6. $50.00 from Marge and Bill Perry to the Town of Wells for the Founders Park Community Center, in memory of Ramon Nolette.
7. $100.00 from Nancy Legere to the Town of Wells for the Wells Fire Department.
8. $4,225.00 from Friends Supporting Wells Public Library to the Wells Public Library for their OverDrive License Fee.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to accept the generous donations and write letters of thanks to the donors. Passed unanimously.

NEW BUSINESS

1. Open to the Public

There was no public comment.

2. Town Manager's Report

Mr. Pardue thanked the residents who participated in Democracy in Action.

3. Select Board Comments

a. Subcommittee Reports
b. Individual Select Board Member Comments

4. **EXECUTIVE SESSION** – To hold an executive session, pursuant to 1 M.R.S. § 405(6)(A), to discuss a personnel matter with the Town Manager.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to go into Executive Session to discuss a personnel matter with the Town Manager, pursuant to 1 M.R.S. § 405(6)(A). Passed unanimously.

Motion by Mrs. Chase, seconded by Mr. MacLeod, to come out of Executive Session. Passed unanimously.

5. Adjournment

Motion by Mrs. Chase, seconded by Mr. MacLeod, to adjourn. Passed unanimously.

Respectfully submitted,

Cinndi Davidson, Meeting Recorder

Accepted by:

